

As Defendants note in Reply, the Proposed Order provides: “Pursuant to Code of Civil Procedure section 1281.4, this action is stayed pending completion of the arbitration, *except for proceedings concerning provisional relief permitted by Code of Civil Procedure section 1281.8.*” (8/5/26 Proposed Order. Emphasis added.) The Court further notes, as Plaintiffs acknowledge in their Limited Opposition, that Defendants’ Motion expressly states the requested stay “will not interfere” with injunctive relief, noting that “[b]oth the settlement agreement (paragraph 17.1) and the California Arbitration Act (Code Civ. Proc., § 1281.8, subd. (b)) authorize a party to seek injunctive relief from the Court even if arbitration is pending.” (Mem., 12:6-9.)

Thus, Plaintiffs’ concern regarding the scope of the stay appears moot. Because the motion is otherwise unopposed, and Plaintiffs expressly agree to arbitration, the motion is GRANTED.

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In The Matter of Sydney Maria Lynn Delima

26CV001413

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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****at 1:30 p.m.****

Reed Woodson v. City of St. Helena et al

26CV000379

PETITIONER’S MOTION FOR JUDGMENT ON THE PEREMPTORY WRIT OF ADMINISTRATIVE MANDATE

APPEARANCE REQUIRED. The Court will hear argument from the parties regarding the below tentative ruling on September 1, 2026, at 1:30 p.m. in Dept. B. The parties need not request or notice a request for oral argument, as otherwise required by Local Rule.

TENTATIVE RULING: The Petition is DENIED.

A. PRELIMINARY MATTERS

By the instant litigation Mr. Woodson seeks an order directing the St. Helena City Council to vacate and reconsider its November 25, 2025, Ruling, made after hearing on the matter on November 18, 2025, upholding the October 10, 2025, decision by Joseph M. Leach, as administrative hearing officer, assessing transient occupancy tax (TOT), penalties, and interest against Mr. Woodson in the amount of \$48,566.05.

B. ADMINISTRATIVE RECORD

Through the Memorandum filed in support of Petitioner’s Motion for Judgment on the Peremptory Writ of Mandate (Support Memo and Motion for Judgment, respectively), Petitioner asserts that “[t]his writ petition turns on a simple administrative-record fact: before Respondents finalized the assessment against Petitioner, the City’s own outside counsel warned in writing that the City had not given Petitioner notice, had not issued a citation allowing an appeal, and had not afforded any other method to challenge the violation or potential fines. That memorandum is in the administrative record.” (Id. at 7:1-5.)

Unfortunately, Petitioner does not appear to have lodged a curated “Administrative Record” with the Court. On July 16, 2026, Petitioner filed a Notice of Lodgment of Administrative Record which states, “[t]he lodged record comprises the following items, consecutively paginated beginning at AR 0001” and separately identifies 22 documents and one recording on unidentified electronic media. However, the Court has no record that the described “Administrative Record” was ever lodged.

On June 25, 2026, in support of his Motion for Judgment, Petitioner filed a declaration that purports to authenticate 13 exhibits identified as Exhibits A through M. Between July 16 and 17, 2026, Petitioner filed two more Declarations and a Request for Judicial Notice, each with exhibits attached. None of these exhibits is labelled “Administrative Record,” and none bear pagination in the form AR XXXX. Moreover, it is unclear whether any of the 22 documents identified in the Notice of Lodgment of Administrative Record are among those attached to these Declarations and Request for Judicial Notice.

In addition, neither Petitioner’s Supporting Memorandum nor Respondent’s Opposition contains any citation in the form “AR XXXX.” From this, the Court concludes that, in spite of the Notice of Lodgment of Administrative Record, no formal Administrative Record has been served in support of the Petition, and speculates that none has been created.

To add complexity, Respondent asserts, through the Opposition, that “Petitioner repeatedly relies upon declarations, exhibits, Public Records Act (‘PRA’) documents, and factual allegations that either were not before the City Council when it rendered its November 25, 2025, decision or have not been shown to satisfy the limited requirements for augmentation of the administrative record under Code of Civil Procedure section 1094.5, subdivision (e).” (Opposition at 7:4-8.) Respondent does not, however, move to strike, or bring evidentiary objections against any documents filed by Petitioner.²

Where no alternative writ is sought, “the administrative record shall be filed as expeditiously as possible, and may be filed with the petition, or by the respondent after payment of the costs by the petitioner, where required, or as otherwise directed by the court.” (Code Civ. Proc., § 1094.5, subd. (a).) Thus, the Court may properly consider matters filed by Petitioner. However, the scope of matters that the Court may consider is precisely defined by law.

² On August 5, 2026, Respondents filed a Notice of Supplementing Petitioner’s Administrative Record. The Court need not determine whether Respondent has made a sufficient showing that these documents are properly in the “Administrative Record” as they are not relevant to the Court’s analysis in light of Petitioner’s concession that “Petitioner does not dispute that he rented his home, the periods during which he did so, or the arithmetic by which the City computed the assessment.” (Reply at 1:22-23.)

“The general rule is that a hearing on a writ of administrative mandamus is conducted solely on the record of the proceeding before the administrative agency. [Citation.] Section 1094.5 contains limited exceptions to this rule. ‘It is error for the court to permit the record to be augmented, in the absence of a proper preliminary foundation . . . showing that one of these exceptions applies.’ [Citation.]” (*Toyota of Visalia v. New Motor Vehicle Bd.* (1987) 188 Cal.App.3d 872, 881.) “Where the court finds that there is relevant evidence that, in the exercise of reasonable diligence, could not have been produced or that was improperly excluded at the hearing before respondent, it may enter judgment as provided in subdivision (f) remanding the case to be reconsidered in the light of that evidence; or, in cases in which the court is authorized by law to exercise its independent judgment on the evidence, the court may admit the evidence at the hearing on the writ without remanding the case.” (Code Civ. Proc. § 1094.5, subd. (e).) “Only where the record is augmented within the strict limits set forth in the statute is evidence on the main issues ever received in the superior court [citation].” (*Windigo Mills v. Unemployment Ins. Appeals Bd.* (1979) 92 Cal.App.3d 586, 595 (*Windigo Mills*).)

Petitioner makes no formal request for the Court to consider extra-record evidence. It therefore appears left to the Court to determine what of the materials provided are within the proper scope of the Administrative Record.

The Court finds that the universe of submitted exhibits that may properly be considered in support of the instant Petition includes Exhibits K (Staff Report) and L (Summary and Ruling Following Appeal to the City Council hereafter referred to as Summary and Ruling) attached to the Declaration of Reed Woodson filed June 25, 2026 (June 25 Woodson Decl.). Under a section of the Staff Report titled “Documents Attachments [sic]” is the following “10.10.25 Administrative Hearing Ruling 270 Pratt Ave-c1 FINAL signed2 JJS Revised Statement Regarding City of St. Helena STR Enforcement at 270 Pratt Avenue.” The phrase “10.10.25 Administrative Hearing Ruling 270 Pratt Ave-c1 FINAL signed2” appears to refer to the document attached as Exhibit J to the June 25 Woodson Decl. That document, therefore, also appears to be properly made a part of the Administrative Record. The Court is unable to identify any document that might correspond to the phrase “JJS Revised Statement Regarding City of St. Helena STR Enforcement at 270 Pratt Avenue.”

The Summary and Ruling states that “Mr. Woodson submitted a written statement in support of his appeal on November 10, 2025.” While it appears that this document was before the City Council, below, the document does not appear to have been filed in this action.³

Petitioner has made no showing that any of the other exhibits to any of his Declarations and/or the subjects of the Request for Judicial Notice were in the record before the City Council, nor has he made a foundational showing that any of the exceptions of Code of Civil Procedure section 1094.5, subdivision (e) apply to any of these other documents.

Based on the foregoing, the Court finds that the Administrative Record consists, in its entirety, of Exhibits J, K, and L, to the June 25 Woodson Decl.

³ Mr. Woodson, through his Declaration filed July 17, 2026, refers to the statement, but does not attach a copy. (See *id.* at ¶ 4.)

C. LEGAL ANALYSIS

The potential questions raised through a petition for so-called administrative mandamus under Section 1094.5 are “whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.” (Section 1094.5, subd. (b).)

Petitioner bears the initial burden of proof on his claims. “In an action for administrative mandamus, ‘[i]t is presumed that an administrative agency regularly performed its duty, and the burden is on the party challenging the agency’s actions to prove an abuse of discretion.’” (See *Save Laurel Way v. Redwood City* (2017) 14 Cal.App.5th 1005, 1011.) Consequently, Petitioner has both the burden of producing evidence, pursuant to Evidence Code Section 550, and of persuading the Court that the Respondent’s decision was invalid and should be set aside, pursuant to Evidence Code Section 606.

“A petitioner has the burden to provide a partial record that will allow sufficient and effective review by the court. A partial record of an administrative proceeding is sufficient for the purposes of section 1094.5, subdivision (a) if it provides the reviewing court a basis for the affirmance or reversal of the order or decision, and establishes where in the proceedings the administrative body proceeded in excess of its jurisdiction, or denied a fair hearing or abused its discretion. This partial record must accurately represent the administrative proceedings, provide the reviewing court an understanding of what occurred below, and enable that court to provide an independent judicial review of the administrative decision.” (*Elizabeth D. v. Zolin* (1993) 21 Cal.App.4th 347, 355.)

1. Constitutional Notice

Petitioner alleges that “The City failed to provide Petitioner with constitutionally required notice and a meaningful opportunity to cure prior to assessing civil penalties, as its own City Attorney explicitly recognized was legally required.” (Petition at ¶ 28, subd. (a).)

Through his Reply brief, Petitioner states “Petitioner does not dispute that he rented his home, the periods during which he did so, or the arithmetic by which the City computed the assessment. Taking the City’s own calculation as given, what he disputes is how far the City may lawfully reach in collecting that tax, together with its penalties and interest.” (Reply at 1:22-25.)

While somewhat vague, it appears that Petitioner’s legal theory is that the assessment is improper in light of the time that passed between Respondent’s learning that Petitioner was renting the property, and Respondent’s undertaking of efforts to collect the taxes due thereon. “Section 3.28.080 of the St. Helena Municipal Code (‘SHMC’) both empowers the City to assess an unremitted transient occupancy tax and commands when it must do so: ‘as soon as’ the tax administrator has the facts, she ‘shall proceed to determine and assess.’ The City invoked the power and ignored the command. It had notice of the rental in July 2021 and did nothing for two

years. Its silence deprived Petitioner of the opportunity to bring the property into compliance and cease the short-term rental, so that no further tax, penalties, or interest would have accrued . . .” (Reply at 1:26-32.)

There is no evidence before the Court that Petitioner raised this precise argument below. “The petitioner bears the burden of demonstrating that the issues raised in the judicial proceeding were first raised at the administrative level. [Citation.]” (*Sierra Club v. City of Orange* (2008) 163 Cal.App.4th 423, 536 (*Sierra Club*); see also *Hagopian v. State of California* (2014) 223 Cal.App.4th 349, 371.)

As noted above, while the Summary and Ruling states that “Mr. Woodson submitted a written statement in support of his appeal on November 10, 2025” that statement does not appear to have been filed in this action. Moreover, the Summary and Ruling states that “Reed Woodson was not present, in person or virtually, during the appeal hearing.”

As relates to the instant issue, the Summary and Ruling furthest states that “[i]n his written statement, Mr. Woodson alleges a failure to notify him of the violations appealed herein. However, Mr. Woodson provides no evidentiary support to that allegation.”

Through his Memorandum filed in support of the Motion for Judgment (Support Memo), Petitioner asserts that “The Wahba Memorandum is in the administrative record. It was raised at the July 24, 2025, administrative hearing. At minimum, it is material record evidence directly supporting Petitioner’s notice and fair-hearing objections. Yet the November 25, 2025, written decision does not address it.” (See *id.* at 14:8-11.)

Regardless of whether the Wahba Memorandum was part of the record before Mr. Leach, it would only be relevant to the present action if it were also before the City Council on the appeal of Mr. Leach’s decision. There is no record that matters contained in the Wahba Memorandum were raised in that appeal. There is no indication in the record before the Court that Petitioner cited to the Wahba Memorandum in his November 10, 2025, Statement. The Wahba Memorandum is not cited or discussed in any of Exhibits K or L to the June 25 Woodson Decl. As such, the Court finds no showing that it may be included in the Administrative Record in this action, nor any showing that the Court may properly consider it, here. (See *Windigo Mills*, *supra*, 92 Cal.App.3d at 595.)

Based on the foregoing, the Court does not find that Petitioner has carried his burden of showing that he is entitled to a writ of mandamus based on any lack of notice or deprivation of constitutional due process.

2. Appearance and Risk of Bias

Petitioner argues that permitting Joseph Leach to preside over the July 24, 2025, administrative hearing created an appearance and risk of bias.

There is, in the record before the Court, no indication that Petitioner raised this argument in connection with his appeal or in his November 10, 2025, Statement to the City Council. The

issue is not discussed in either Exhibits K or L to the June 25 Woodson Decl. As such, Mr. Woodson fails to carry his burden of demonstrating that the issue was raised at the administrative level. (See *Sierra Club*, *supra*, 163 Cal.App.4th at 536.)

3. Lack of Evidentiary Support

Petitioner next argues that “[t]he November 25, 2025 written decision states that Petitioner ‘alleges a failure to notify him of the violations appealed herein. However, Mr. Woodson provides no evidentiary support to that allegation.’ [Citation.] The administrative record, including the City’s own internal communications produced in this matter, refutes that finding on its face.” (Support Memo at 16:17-21.)

The record before the Court does not include the “City’s own internal communications produced in this matter.” Petitioner fails to show that these matters were part of the record before the City Council. He also fails to show that they satisfy any of the exceptions set forth in Code of Civil Procedure section 1094.5, subdivision (e). As such, the Court is not authorized to consider them here. (See *Windigo Mills*, *supra*, 92 Cal.App.3d at 595.)

Based on the foregoing, Petitioner fails to establish that the Council’s finding that Petitioner failed, in his appeal to the City Council, to provide evidentiary support for his contention that the City failed to notify him of the violations is either without evidentiary support.

4. Ignorance of the Law

Petitioner next argues that “[t]he November 25, 2025 written decision recharacterizes Petitioner’s argument as ‘ignorance of the law’ and cites *Hopkins & Carley v. Gens* for that proposition. The recharacterization is itself a legal error.” (Support Memo at 18:8-10.)

No language appearing in the Summary and Ruling Following Appeal to the City Council appears, to the Court, to characterize Petitioner’s argument as “ignorance of the law.” It does not cite to *Hopkins & Carley v. Gens*.

These matters are discussed in the October 10, 2025 Summary & Ruling following the July 24, 2025 administrative hearing conducted by Joseph M. Leach. (See Exhibit J to the Declaration of Reed Woodson filed June 25, 2026.)

However, there is, in the record before the Court, no indication that Petitioner raised this issue in connection with his appeal or in his November 10, 2025, Statement to the City Council. The issue is not discussed in either Exhibits K or L to the June 25 Woodson Decl. As such, Mr. Woodson fails to carry his burden of demonstrating that he exhausted his administrative remedy as to this issue. (See *Sierra Club*, *supra*, 163 Cal.App.4th at 536.)

5. City Code Amendment

Finally, Petitioner argues that the City's subsequent amendment of its Municipal Code "reinforce Petitioner's argument that the framework applied to him was unclear and required careful due process review, not the summary rejection reflected in the November 25, 2025, decision." (Support Memo at 19:18-20.)

The argument is vague and ambiguous. It does not appear, to the Court, to state grounds for directing Respondent to vacate the subject decision.

6. Remaining Allegations

Petitioner fails to support any of the remaining allegations of the Petition with argument in his Support Memo. Petitioner fails, therefore, to carry its burden of persuasion on any grounds for relief arising out of the remaining allegations of the Petition.

D. CONCLUSION

Based on the foregoing, the Petition for Writ of Mandamus is DENIED.